

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

----- X

KIRLEW THOMPSON,

Plaintiff,

-against-

THE CITY OF NEW YORK,
NYPD OFFICER JHOAN LOZANO and
NYPD OFFICER "JOHN DOE,"

Defendants.

----- X

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
February 12, 2019

SIVIN & MILLER, LLP

By



Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

The City of New York: 100 Church Street, New York, NY 10007

NYPD Officer Jhoan Lozano: c/o NYPD 113th Pct., 167-02 Baisley Blvd., Jamaica, NY 11434

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

----- X
KIRLEW THOMPSON,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
NYPD OFFICER JHOAN LOZANO and
NYPD OFFICER "JOHN DOE,"

Defendants.

----- X

Plaintiff, by his attorneys SIVIN & MILLER, LLP, as and for his complaint
herein, alleges as follows, upon information and belief:

THE PARTIES

1. That at all times herein mentioned, plaintiff was and is a resident of the County of Suffolk, State of New York.
2. That at all times herein mentioned, defendant The City of New York (hereinafter "the City") was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
3. That prior to the institution of this action, and within ninety days of the accrual of the causes of action herein, a notice of claim and intention to sue was duly served upon and filed with defendants; that this action was not commenced until the expiration of thirty (30) days after such notice of claim and intention to sue was presented and defendants have neglected and/or refused to make adjustment or payment thereon; and this action is being commenced within one year and ninety days after the causes of action accrued herein.

4. That at all times herein mentioned, the City operated, controlled, managed, and maintained the New York Police Department (hereinafter the "NYPD").

5. That at all times herein mentioned, defendant NYPD Officer Jhoan Lozano (hereinafter "Lozano") was and is an officer employed by the NYPD.

6. That at all times herein mentioned, Lozano was acting within the course and scope of his employment with the NYPD.

7. That at all times herein mentioned, Lozano was acting under color of state law.

8. That at all times herein mentioned, defendant NYPD Officer "John Doe" (hereinafter "Doe") is a fictitious name designating an officer whose identity is unknown to plaintiff and was working with Lozano at the time of the incident underlying this lawsuit.

9. That at all times herein mentioned, Doe was acting within the course and scope of his employment with the NYPD.

10. That at all times herein mentioned, Doe was acting under color of state law.

THE FACTS

11. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

12. That on or about October 11, 2018, on Linden Blvd., in the County of Queens, City and State of New York, the City of New York, by and through its agents, servants and/or employees, including officers with the NYPD, including but not limited to Lozano and Doe (hereinafter referred to collectively as "the officers"), without a warrant and without probable cause or reasonable suspicion to believe that plaintiff had committed or was about to commit a crime, criminal offense, or violation, and without otherwise being justified, forcibly stopped plaintiff's vehicle, forcibly removed plaintiff from his vehicle by threatening plaintiff with

imminent physical harm were he not to exit his vehicle, and forcibly handcuffed plaintiff.

13. That the officers, without a warrant or other legal justification, then arrested plaintiff and detained and imprisoned plaintiff against his will at the scene of the stop, inside a police vehicle, and at a police precinct.

14. That the officers did not have probable cause to believe that plaintiff had committed or was about to commit any crime or violation.

15. That the officers' arrest of plaintiff was undertaken as a pretext to detain plaintiff in a police precinct and interrogate plaintiff about a homicide and other crimes that allegedly had been committed by other individuals.

16. That when he was transported to the police precinct, plaintiff was interrogated by NYPD detectives about these alleged crimes of which plaintiff had no knowledge or information.

17. That on October 11, 2018, after it was determined that plaintiff had no knowledge of or information about the alleged crimes, the officers initiated and/or caused to be initiated a criminal prosecution of plaintiff by charging plaintiff with violations of NY Transportation Law § 145(6) and NYC Administrative Code § 19-507(a)(4).

18. That the officers did not have probable cause to believe that plaintiff was guilty of either offense with which he was charged.

19. That the prosecution of plaintiff was initiated by the officers maliciously and with the intent to cover up the officers' malfeasance in arresting, detaining, and imprisoning plaintiff without probable cause or other justification.

20. That as a result of the aforesaid prosecution, plaintiff was compelled to appear in Criminal Court and was deprived of his liberty and restricted in his right to travel.

21. That on or about December 19, 2018, all criminal charges against plaintiff were dismissed on the merits and the criminal proceeding terminated favorably to plaintiff.

22. That the actions of the officers were intentional and malicious in nature.

23. That the forcible stop, detention, arrest, imprisonment, and prosecution of plaintiff was part of an ongoing, unconstitutional pattern of conduct by NYPD officers involving random stops of drivers for the purpose of interrogating those drivers about crimes committed in the neighborhood.

24. That this unconstitutional pattern of conduct was encouraged, endorsed, condoned, and ratified by the NYPD, thus amounting to a custom, practice and/or policy of the NYPD.

25. That each of the officers observed the illegal conduct or his or her fellow officers, had a reasonable opportunity to intervene to prevent or stop that conduct, but deliberately failed and refused to do so.

26. That as a result of the foregoing, plaintiff suffered a loss of liberty, embarrassment, humiliation, and economic loss, and suffered and continues to suffer emotional injuries, pain and suffering, loss of enjoyment of life, and economic loss.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Assault)

27. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

28. That the aforementioned actions of the officers constituted an assault upon plaintiff, for which the officers are liable under NY State law and for which the City is vicariously liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Battery)

29. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

30. That the aforementioned actions of the officers constituted a battery upon plaintiff, for which the officers are liable under NY State law and for which the City is vicariously liable under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS
(False Arrest/Imprisonment)

31. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

32. That the aforementioned actions of the officers constituted a false arrest and a false imprisonment of plaintiff, for which the officers are liable under NY State law and for which the City is vicariously liable under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Malicious Prosecution)

33. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

34. That the aforementioned actions of the officers constituted a malicious prosecution of plaintiff, for which the officers are liable under NY State law and for which the City is vicariously liable under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION AGAINST THE OFFICERS
(42 USC § 1983 Claim Arising From Fourth & Fourteenth Amendment Violation)

35. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

36. That the aforementioned actions of the officers constituted illegal seizures of plaintiff, in violation of rights guaranteed to plaintiff under the Fourth and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

SIXTH CAUSE OF ACTION AGAINST THE OFFICERS
(42 USC § 1983 Claim Arising From Failure to Intervene)

37. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

38. That the aforementioned actions of the officers in failing to intervene to prevent and/or stop the illegal conduct of their fellow officers constituted a violation of rights guaranteed to plaintiff under the Fourth and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

SEVENTH CAUSE OF ACTION AGAINST THE CITY
(Negligent Hiring, Training, and Retention)

39. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

40. That the aforesaid incident and resulting damage to plaintiff were due to the negligence of the City, its agents, servants and/or employees, in the hiring, training, and retention of the officers.

EIGHTH CAUSE OF ACTION AGAINST THE CITY
(Monell Claim)

41. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

42. That the aforesaid incident and resulting damage to plaintiff were the result of

an unconstitutional pattern, practice, and policy of the NYPD involving the random and unjustified stops, detentions, arrests, imprisonments, and prosecutions of individuals as a pretext to enable NYPD officers to interrogate those individuals in the hopes of obtaining information believed to be useful to the NYPD in solving other crimes.

43. That by virtue of the foregoing, plaintiff is entitled to damages from the City pursuant to 42 U.S.C. § 1983 and *Monell v. Dep't of Social Servs. Of N.Y.C.*, 436 U.S. 658.

44. That all of the foregoing causes of action fall within one or more of the exceptions set forth in CPLR § 1602 with respect to joint and several liability.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against the officers, and attorney's fees against the officers pursuant to 42 U.S.C. § 1988, and plaintiff also demands the costs and disbursements of this action.

Dated: New York, New York
February 13, 2019

Yours, etc.
SIVIN & MILLER, LLP

By _____

Edward Sivin
Attorneys for plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

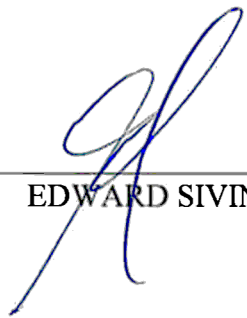
That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
February 13, 2019



EDWARD SIVIN

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Year 2019

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

KIRLEW THOMPSON,

Plaintiff,

-against-

THE CITY OF NEW YORK, et. al.,

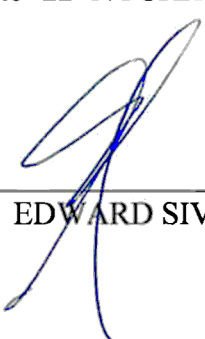
Defendants.

VERIFIED COMPLAINT

SIVIN & MILLER, LLP
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300
FAX (212) 406-9462

Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.



EDWARD SIVIN

Dated: New York, New York
February 13, 2019